

CHAPTER - 9

INTERNATIONAL LAW

WHAT IS INTERNATIONAL LAW?

- Every state has their own respective laws (domestic laws) which regulate the conduct of its citizens.
- These laws regulate the private, social, commercial and other activities of the individuals.
- These internal laws also help in regulating the conduct and affairs of the state machinery.
- But, what happens when there is a dispute between two or more state parties? Which body of law governs their conduct? Which jurisdiction is to be applied in case of disputes related to private parties across different jurisdictions? The answer to these situations lies in International Law

International law hence came to be a framework of rules and principles binding the relations between states and governing their conduct amongst themselves. It is a form of law which relies on consent-based governance to a great extent, as states are not ordinarily obliged to abide by it, unless they expressly consent to a particular course of conduct, though certain aspects are exceptions to the consent

requirement, such as principles of customary international law and peremptory norms or jus cogens

International Law can be further categorized into:

1. Public International Law
2. Private International Law

1. PUBLIC INTERNATIONAL LAW

1. Public International Law is the law that regulates relations between states.
2. Public International law is different from other types of laws because it is concerned with interstate regulation, i.e. it deals in regulating the conduct of one state with another and is not concerned with the relations between private entities (legal and natural persons) and even the domestic laws of any country.

The primary objective of Public International law is to provide for a framework of rules and regulations which help in fostering stable and organized international relations

Public International Law is further classified into fields such as law of the seas, international humanitarian law, the law of treaties, and so on

Some key areas where public international law is applicable:

Peace and security	Intellectual Property	Bio-diversity
Human rights	Development	Science and security
Finance	Sea	Fisheries
Airspace	Weapons	International Crimes
Trade	Natural resources	Climate change

Extradition

Private International Law, often referred to as "Conflict of Laws", is a set of rules and principles that govern interstate interactions and transactions of private parties.

It is a body constituted of conventions, model laws, domestic laws of states and secondary legal sources. It commonly involves issues like which

- Jurisdiction should be permitted to hear the case, and
- Jurisdiction's law should be applied

No.	Public International Law	Private International Law / Law of Conflicts
(1)	Public International law is the body of legal rules, which applied between Sovereign States and other International Personalities.	Conflict of laws, often called Private International Law. Private International Law regulating relationship between Private persons (Natural or Legal) of two different States.
(2)	Public International law rules are outcome of International custom and treaties.	Private International law rules are framed by the State legislature.
(3)	Public International law is enforced by international pressure and fear for example – breakage of diplomatic relations, sanctions etc.	Private International Law is enforced by the concerned State executive.
(4)	In public International Law there is no Predetermined Court.	In private International Law courts are predetermined.
(5)	Public International Law is same for all the States.	Private International Law differ from state to state.